

Subject Qualification: Degree of LLM, School of Law
Session: 2021/22
Examination Title: Contemporary Issues in Intellectual
Property Law

Course Code: LAW5011
Date: Monday 16th May
Time: 14:00

Instructions:

It should take you no longer than **TWO** hours to complete this exam.

Maximum word limit **2000 words**

Answer **TWO** questions.

CONTINUED OVERLEAF

1. "The objective of ensuring a better remuneration of rightholders where their content is exploited by internet services is certainly laudable. Yet, the compromises and bad choices made by the Directive lead to intricate provisions whose success might be illusory." (Severine Dusollier on the Copyright in the Single Market Directive).
Considering the statement above, do you think art. 17 of the Copyright in the Digital Single Market Directive is an appropriate way to address the so-called "value gap" problem?
2. "In the context of Brexit, there is an inevitable trade-off between regulatory divergence and market access." Discuss with reference to specific laws.
3. Regulatory intervention to address the tension between news media organisations and digital platforms is indispensable to ensure the sustainability of the news industry and foster the availability of quality journalism.

Do you agree with this statement? Why/why not?

4. How might the law impact user creativity on digital platforms? Discuss with reference to relevant psychological and/or economic studies.

END OF EXAM PAPER